

25TRCV02923 25TRCV02923

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Case Number: 25TRCV02923 Hearing Date: September 2, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Wednesday,
September 2, 2026

Department M Calendar No.

PROCEEDINGS

Saqib Anwar Khan v. Lyft, Inc., et al.

25TRCV02923

1. Lyft, Inc.'s Motion to Compel Arbitration and Stay
Proceedings

TENTATIVE RULING

Lyft, Inc.'s Motion to Compel
Arbitration and Stay Proceedings is granted.

Background

Plaintiff filed the Complaint on August
29, 2023. Plaintiff alleges the following facts. Plaintiff was involved in a
motor vehicle accident involving Defendants. Plaintiff was a passenger in a
vehicle operated by a Lyft driver, co-Defendant Madiyar Damen, pursuant to the

Lyft platform at the time of the accident.

Motion to Compel Arbitration

“California law reflects a strong public policy in favor of arbitration as a relatively quick and inexpensive method for resolving disputes.

[Citation.] To further that policy, [Code of Civil Procedure] section 1281.2 requires a trial court to enforce a written arbitration agreement unless one of three limited exceptions applies. [Citation.] Those statutory exceptions arise where (1) a party waives the right to arbitration; (2) grounds exist for revoking the arbitration agreement; and (3) pending litigation with a third party creates the possibility of conflicting rulings on common factual or legal issues.

(§ 1281.2, subds. (a)–(c).)” *Acquire II, Ltd. v. Colton Real Estate Group* (2013) 213 Cal.App.4th 959, 967.

“The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” *Giuliano v. Inland Empire Personnel, Inc.* (2007) 149 Cal.App.4th 1276, 1284.

“The party opposing arbitration has the burden of demonstrating that an arbitration clause cannot be interpreted to require arbitration of the dispute. Nonetheless, this policy does not override ordinary principles of contract interpretation. [T]he contractual terms themselves must be carefully examined before the parties to the contract can be ordered to arbitration: Although [t]he law favors contracts for arbitration of disputes between parties, there is no policy compelling persons to accept arbitration of controversies which they have not agreed to arbitrate.” *Rice v. Downs* (2016) 247 Cal.App.4th 1213, 1223 (internal citations and quotations omitted).

In *Rowe v. Exline* (2007) 153 Cal.App.4th 1276, 1286, the Court of Appeal found that “a nonsignatory sued as an agent of a signatory may enforce an arbitration agreement.” *Id.* at 1286. In addition, “a nonsignatory

who is the agent of a signatory can even be compelled to arbitrate claims against his will.” Id. at 1285, citing *Harris v. Superior Court* (1986) 188 Cal.App.3d 475, 477–78. Further, “in many cases, nonparties to arbitration agreements are allowed to enforce those agreements where there is sufficient identity of parties.” *Valley Casework, Inc. v. Comfort Construction, Inc.* (1999) 76 Cal.App.4th 1013, 1021. This includes nonparties as agents of a party as well as “a third party beneficiary of an arbitration agreement.” Ibid.

Defendant moves to compel arbitration and to stay this action pursuant to California Code of Civil Procedure §§ 1280, et seq. and the FAA on the grounds that Plaintiff executed an arbitration agreement wherein Plaintiff is bound to arbitrate the claims alleged in the Complaint.

Defendant attached as Exhibits 2 to 4 to the declaration of Kimberly Simmons the purported arbitration agreement. The relevant provisions of the agreement states as follows: “DISPUTE RESOLUTION AND ARBITRATION AGREEMENT [. . .] YOU AND LYFT MUTUALLY AGREE TO WAIVE OUR RESPECTIVE RIGHTS TO RESOLUTION OF DISPUTES IN A COURT OF LAW BY A JUDGE OR JURY AND AGREE TO RESOLVE ANY DISPUTE BY ARBITRATION[.]” (Decl., Simmons, Exhibit 4 at ¶17(a).) The scope of the agreement covers “any dispute, claim or controversy whether based on past, present, or future events, arising out of or relating to...the Lyft Platform, the Rideshare Services...and all other federal and state statutory and common law claims.” (Id.)

Code Civ. Proc., § 1281.2

states, in relevant part: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists[. . .]” “Generally, an arbitration agreement must be memorialized in writing. A party's acceptance of an agreement to arbitrate may be express, as where a party signs the agreement. A signed agreement is not necessary, however, and a party's acceptance may be implied in fact or be effectuated by delegated consent. An arbitration clause within a contract may be binding on a party even if the party never actually read the clause.” *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236

(internal citations omitted).

The burden of production of evidence in the context of a motion to compel arbitration was cogently articulated by the following case. “First, the moving party bears the burden of producing prima facie evidence of a written agreement to arbitrate the controversy. The moving party can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature. Alternatively, the moving party can meet its burden by setting forth the agreement's provisions in the motion. For this step, it is not necessary to follow the normal procedures of document authentication. If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion. [¶] If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement. [¶] If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165–166 (internal citations and quotations omitted).

Defendant has met its initial burden of producing prima facie evidence of a written agreement to arbitrate. (Decl., Kimberly Simmons, Exs. 2-4). The arbitration agreement requires that the parties submit the instant dispute to arbitration. As noted above, at this stage, Defendant need only show prima facie evidence of the existence of the agreement which it has properly done.

Thus, the burden shifts to Plaintiff to produce evidence to challenge the authenticity of the agreement, by, for example, challenging that he ever signed and agreed to the agreement. Plaintiff filed a notice of non-opposition. Plaintiff did not meet his burden to provide admissible evidence to validly dispute the existence of the arbitration agreement.

Therefore, the burden now shifts to Plaintiff to show that the arbitration clause should not be enforced. Rice, supra, 247 Cal.App.4th at 1223. Plaintiff filed a notice of non-opposition and did not meet his burden to show that the arbitration agreement should not be enforced.

Therefore, the Motion to Compel Arbitration is granted. The Court action is ordered stayed pending completion of arbitration.

Thus, Defendant's Motion to Compel Arbitration and to Stay Proceedings is granted.

An OSC re: Arbitration Status is set for

_____.

Defendant Lyft is ordered to give notice of this ruling.